

2:00 PM

LINE: 2

23-CIV-00632

AIXTEK, A CALIFORNIA CORPORATION VS. THE COUNTY OF SAN MATEO

AIXTEK, A CALIFORNIA CORPORATION
THE COUNTY OF SAN MATEO

JOHN PETER SHEARER
DANIEL T. MCCLOSKEY

DEFENDANT COUNTY OF SAN MATEO'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR ADMISSION NOS. 33 43 AND CORRESPONDING FORM INTERROGATORIES, SET TWO

TENTATIVE RULING:

The Court does not decide the merits of the County's Motion to Compel Further Responses to Request for Admission Nos. 33–43 and Corresponding Form Interrogatories, Set Two. That motion concerns discovery responses, discovery objections, Form Interrogatory No. 17.1, and related monetary sanctions, and it is likewise within the scope of the discovery referee's appointment. The motion is referred back to the Honorable Timothy R. Volkmann (Ret.) for ruling.

Nothing in this order expresses any view on whether the County's motion to compel should be granted or denied, whether further responses should be ordered, whether RFAs should be deemed admitted, or whether sanctions should be imposed. Those determinations shall be made by the discovery referee in the first instance under the existing reference order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE: 3

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THE COUNTY OF SAN MATEO

JOHN PETER SHEARER
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DEFENDANT COUNTY OF SAN MATEO'S MOTION FOR SANCTIONS RE: DEPOSITIONS OF JOHN AND PATRICIA EATON

TENTATIVE RULING:

County of San Mateo's Motion to Withdraw Stipulation for the Appointment of a Discovery Referee and to Set a Hearing on the Motion for Terminating Sanctions is **DENIED**.

The Court finds that the County has not shown good cause under California Rules of Court, rule 3.906 to withdraw from the stipulation for appointment of the discovery referee or to vacate the reference. The County's disagreement with the referee's handling of the terminating-sanctions request does not constitute good cause to withdraw the stipulation.

The Court does not decide the merits of the County's request for terminating sanctions. That issue remains within the scope of the existing discovery reference and shall be decided by the discovery referee in the first instance.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
